

24STCV28646 24STCV28646

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV28646 Hearing Date: July 16, 2026 Dept: 512

HEARING DATE: Thurs., July 16, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Allstate

Northbrook Indemnity Co. v. COMP.

FILED: 10-31-24

Spriggs, et al.

CASE NUMBER: 24STCV28646

NOTICE: OK

PROCEEDINGS: MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL
INTERROGATORIES; MOTIONS TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION

MOVING PARTY: Defendant

Kinkle, Rodiger & Spriggs, P.C.

RESP. PARTY: Plaintiffs

Allstate Northbrook Indemnity Company and Allstate Insurance Company

MOTIONS TO COMPEL FURTHER RESPONSES TO

SPECIAL INTERROGATORIES AND REQUESTS FOR PRODUCTION

(CCP §§ 2030.300, 2031.310)

TENTATIVE RULING:

Defendant Kinkle, Rodiger & Spriggs, P.C.'s Motions to Compel Further Responses to Requests for Production, Set 1 and Set 2, and Special Interrogatories are DENIED.

Plaintiffs' request for sanctions is GRANTED against Defendant Kinkle, Rodiger & Spriggs, P.C. in the reduced amount of \$4,875.00, payable to Plaintiffs' counsel within 30 days of this Court's order.

Moving party is to give notice of ruling.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 2, 2026 ☐ Late ☐ None

REPLY: Filed
on July 9, 2026 ☐ Late ☐ None

ANALYSIS:

I.

Background

On October 31, 2024, Plaintiffs Allstate Northbrook Indemnity Company and Allstate Insurance Company ("Plaintiffs") filed the instant action against Defendants Scott Spriggs and Kinkle Rodiger & Spriggs P.C. ("KRS PC") ("Defendants") and Does 1-50, alleging causes of action for Legal Malpractice and Breach of Fiduciary Duty. (Compl., p.1.) The underlying action pertains to Defendants' inadequate legal representation of Plaintiffs' insureds in a separate matter. (Compl., pp. 1-16.)

On February 5, 2025, Defendants filed an Answer.

On March 10, 2026, an Informal Discovery Conference (“IDC”) was held. (3/10/26 Order.)

On March 11, 2026, Defendants filed the instant Motions to Compel Further Responses to Requests for Production (“RPDs”) (Set 1 and Set 2) and Special Interrogatories (“SROGs”) (collectively, the “Motions”) and requests for sanctions.

On May 27, 2026, an IDC was held. (5/27/26 Order.)

On July 2, 2026, Plaintiffs filed an Opposition to the Motions.

On July 9, 2026, Defendants filed a Reply to the Motions.

II. Procedural Issues

As an initial matter, the Motions are procedurally defective as they have separate notices and separate statements but a consolidated memorandum, supporting declarations, and proof of service. This amalgamation of motion papers improperly combines three motions into one and/or constitutes piecemeal filing of three motions’ components.

III. Legal Standard

Responses to interrogatories must be “as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc., § 2030.220, subd. (a).) If an interrogatory cannot be answered completely, then it must be answered to the extent possible. (Code Civ. Proc., § 2030.220, subd. (b).) “If the responding party does not have personal knowledge sufficient to respond fully to an

interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Code Civ. Proc., § 2030.220, subd. (c).)

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (c).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).)

Motions to Compel Further Responses

Code of Civil Procedure section

2030.300, subdivision (a), provides that “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) [a]n answer to a particular interrogatory is evasive or incomplete [;] (2) [a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate [; or] (3) [a]n objection to an interrogatory is without merit or too general.”

Code of Civil Procedure section

2031.310, subdivision (a), provides that “[o]n receipt of a response to a demand for inspection ... the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) [a] statement of compliance with the demand is incomplete[;] (2) [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] (3) [a]n objection in the response is without merit or too general.”

In California, discovery

statutes “must be construed liberally in favor of disclosure unless the request is clearly improper.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.) “Under the discovery statutes, information is discoverable if it is unprivileged and is either relevant to the subject matter of the action or reasonably calculated to reveal admissible evidence.” (John B. v. Superior

Court (2006) 38 Cal.4th 1177, 1186.) “Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action.” (Ibid.) “When discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden.” (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.)

IV.

Discussion

A. Timeliness of Motion

Notice of the motion must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c).)

Here, the Motions were filed within 45 days of service of the responses.

B. Meet and Confer

The Motions shall be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., §§ 2030.300, subd. (b)(1); 2031.310, subd. (b)(2).)

Here, the Motions are not accompanied by meet and confer declarations.

However, the Court notes it is undisputed that the parties participated in IDCs regarding the instant discovery requests in March 2026 and May 2026. (3/10/26 Order; 5/27/26 Order.)

C. Requests to Compel Further Responses

to Special Interrogatories and Requests for Production, Set One and Set Two

The parties do not dispute that Plaintiffs provided supplemental responses following the Motions being filed and prior to the instant hearing date. (See Opp.; Reply.)

However, KRS PC alleges that the supplemental responses to the RPDs are still deficient for the following reasons: Plaintiffs did not utilize certain search terms in locating documents to produce in response to RPDs, such as Request Nos. 1 and 2 (Reply, pp. 2-3); Plaintiffs' productions lack essential metadata and thus certain documents were not produced properly (Reply, pp. 4-7); and Plaintiffs improperly provided only objections to Request No. 8 from RPDs Set One and Request Nos. 1, 4-10, 13-17, and 22 of RPDs Set No. 2 (Reply, p. 9).

Procedural Issues

As an initial matter, the Court notes that while KRS PC states in the Reply that Plaintiffs' supplemental responses to all discovery requests were reviewed prior to the instant hearing date, KRS PC failed to file an updated Separate Statement specifying which of Plaintiffs' responses remain deficient in conjunction with the Reply.

The Court proceeds to address the Motions to the best of its ability while operating from only a global perspective regarding the supplemental responses.

Requests for Production

As to the RPDs Motions, Code of Civil Procedure section 2031.030 requires that each RPD must designate "the documents, tangible things, land or other property, or electronically stored information to be inspected, copied, tested, or sampled either by specifically describing each individual item or by reasonably particularizing each category of item." (Code Civ. Proc., § 2031.030, emphasis added; see *Calcor Space Facility, Inc. v. Sup. Ct. (Thiem Indus., Inc.)* (1997) 53 Cal.App.4th 216, 222.)

The Court finds the RPDs here are overbroad and fail to reasonably particularize each category of item requested. (Ibid.) For example, Request No. 8 of RPDs Set One seeks: "YOUR underwriting file RELATING TO Marilyn Chausse and/or Shayla Nash." (Opp., Sep. Statement, p. 22.) Request No. 4 of RPDs Set Two seeks: "Any of YOUR organizational charts that include individuals or organizations responsible for maintaining electronic processing systems, networks, servers, and data security

measures.” (Opp., Sep. Statement, p. 12.) Further, Request No. 1 of RPDs Set Two seeks: “Any DOCUMENT relating to any LITIGATION HOLD that relates to the UNDERLYING MATTER.” (Opp. Sep. Statement, p. 2.) Request No. 8 of RPDs Set Two seeks: “Any DOCUMENT that relates to YOUR policies, procedures or guidelines with respect to file naming conventions and standards.” (Opp., Sep. Statement, p. 20.) While the Court acknowledges there may be some relevance to aspects of the moving parties’ requests, narrowly tailored requests seeking specific information would be more appropriate than the instant sweeping requests.

In sum, the Court finds the subject RPDs are overbroad and not reasonably particularized to the disputed issues and time periods pertinent to the case. Furthermore, responses on relevant materials in supplemental responses consistently state that “After a diligent search and reasonable inquiry, all responsive, non-privileged documents within Responding Party’s possession, custody and control have been produced.” Thus, the responses are largely code-compliant.

Regarding

KRS PC’s allegations regarding deficient metadata in the supplemental responses, Code of Civil Procedure section 2031.030, subdivision (a)(2) states that “[a] party demanding inspection, copying, testing, or sampling of electronically stored information may specify the form or forms in which each type of electronically stored information is to be produced.” (Code Civ. Proc., § 2021.030, subd. (a)(2).) However, the record does not show that any specific metadata instructions were included in the RPDs requests, Set One or Set Two. (See Motions, Sep. Statements; Opp., Sep. Statements; Reply.) Accordingly, KRS PC’s allegations regarding metadata do not warrant granting of the RPDs Motions.

For the foregoing reasons, the RPDs Motions are DENIED.

Special Interrogatories

As the SROGs Motion, the Reply alleges that the only remaining deficiency with the SROGs supplemental responses provided prior to the instant hearing is that two individuals are not identified by name in SROGs seeking names of Plaintiffs’ ESI custodians. (See Reply, pp. 9-10.)

However, upon the Court’s review of SROGs propounded upon Plaintiffs, the Court finds the requests to be overbroad

and vague, including SROGs Nos. 2, 8, and 9 referenced in the Reply. For instance, SROG No. 8 states: "IDENTIFY any PERSON who is or was employed or hired by YOU who has generated any DOCUMENT with respect to the UNDERLYING MATTER." (Opp., Exh. 9.) SROG No. 9 states: "IDENTIFY any PERSON who is or was employed or hired by YOU who has generated any." (Opp., Exh. 9.) The Court finds the requests are overbroad, and narrowly tailored interrogatories seeking specific information would be more appropriate than the instant sweeping requests. Thus, the Court finds these interrogatories are overbroad and not narrowly tailored to the disputed issues of the case.

For the foregoing reasons, the SROGs Motion is DENIED.

For all the foregoing reasons, the Motions are DENIED.

D. Sanctions

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300, subd. (d).)

"Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.320, subdivision (b).)

Here, the Motions were unsuccessful and thus the Court imposes monetary sanctions against moving party. (Code Civ. Proc., §§ 2030.300, 2031.320.)

Plaintiff

requests \$8,625.00 in sanctions against KRS PC, reflecting 21 hours incurred at

an hourly rate of \$375.00 to bring the Opposition and accompanying documents, plus two hours incurred to review the reply and prepare for and attend the Motions' hearing. (Notice of Motion, p. 1, Motion, Macan Decl., p. 5.)

Given the consolidated Opposition, Reply, and hearing date, the Court GRANTS Plaintiff's request for sanctions in the reduced amount of \$4,875.00, reflecting 13 hours incurred at \$375.00 per hour.

V.

Conclusion

& Order

For the foregoing reasons, Defendant Kinkle, Rodiger & Spriggs, P.C.'s Motions to Compel Further Responses to Requests for Production, Set 1 and Set 2, and Special Interrogatories are DENIED.

Plaintiffs' request for sanctions is GRANTED against Defendant Kinkle, Rodiger & Spriggs, P.C. in the reduced amount of \$4,875.00, payable to Plaintiffs' counsel within 30 days of this Court's order.

Moving party is to give notice of ruling.